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Submitter Information

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General Comment

I'm an software engineer at a university. As someone who uses AI regularly both in my personal life and my job I have a reasonable understanding of it. With that said, I do think regulating some aspects of the technology makes sense, my greatest concern is the use of it to propagate misinformation. On the other side, I am not concerned about how it ingests information ("learns"). The idea of copyright has long been to preserve the original creator's claim to what they produce so that they may earn a fair value for their work. The idea though is that the value is in the transformation of that information, along the lines of, "Is what has been produced transformative"? People, the same as AI albeit in different way, ingest knowledge, transform it, and output it in a new form. We don't consider that theft unless the transformation is significant enough to pass a (somewhat vague) bar of originality: that is, enough to call it something else, something new. Content creators today all do this: ingesting information and regurgitating it in a different (ideally better) form. When the output is too close to the original we call it plagiarism, theft, and copyright violation. This determination is made by comparing the specific output with what was originally input. On a case by case basis, we make these sorts of judgements. How the person originally got the information isn't as relevant to the judgement as how close the work is to the original.

AI does this same thing, faster and in a different way, but in the end the question is how unique is the output produced? It seems that the way to judge AI generated content should be the same as with humans: if the output is too similar to the input, it's plagiarized or a copyright violation. It seems to only limit the potential of AI systems to impose arbitrary restrictions on what content they can ingest, if the information is public. If the output is found to be in violation, the prompter who generated it through the tool is the guilty party.

That all being said, I can see some value to copyright holders whose information is pay-restricted to have special licensing that differentiates between human audiences and AI ones, mainly because the price determination for humans assumes human limitations on how quickly and how much of the content they can actually ingest. It's reasonable to assume AI will consume significantly greater amounts than humans.

Lastly, the question of who owns AI generated work is not as clear. My initial expectation is that the prompter using the tool, ie: the first to see the output of the machine, gains rights to the work, which would also make them responsible for validating that the work is not in violation and transformative enough. Although an argument could be made to call the output as in the public domain, that creates a dilemma for when it violates legal copyright. Likewise I would not consider the AI system owner the owner of the work simply because that would put considerable and unreasonable responsibility on them while also making the system less valuable to the users.

In short: I favor some regulations to curb harm, some regulations to cover access to pay-restricted content, do not support AI system makers being responsible for the content their systems produce (with exceptions to limit harmful content), and support copyright ownership belonging to the prompter of the AI system.